

DEFENDANT’S DEMURRER TO PLAINTIFF’S FIRST AMENDED COMPLAINT

TENTATIVE RULING: The demurrer is OVERRULED. Defendants are granted 10 days’ leave from notice of entry of order to answer the FAC (defined below). (See Rules of Court, rule 3.1320(g).) Plaintiff is directed to provide notice of entry of order.

Defendants Estate of Jack Malan and Chris Malan, individually, as successor in interest to Jack Malan, deceased, and as successor Trustee of the Malan Family Trust (“Defendants”) demur, pursuant to Code of Civil Procedure section 430.10, subdivision (e),¹ to the First Amended Complaint (“FAC”) filed by Plaintiff Angelica Hernandez (“Plaintiff”). Defendants so move on the ground that the FAC fails to state facts sufficient to constitute a cause of action because the entire action is barred by the applicable statute of limitations.

As a preliminary matter, the Court’s reference to FAC includes both (1) the FAC filed on March 17, 2026, naming defendant “Estate of Jack Malan, by and through its Personal Representative” and DOES 1-100, and (2) the Amendment filed April 30, 2026, substituting DOE 1 as “Chris Malan, individually and as Successor in Interest to Jack Malan, deceased, and as Successor Trustee of the Malan Family Trust.” The Court notes that Plaintiff did not obtain leave of Court for her DOE amendment to the FAC. That said, Plaintiff raised her DOE amendment in opposition to Defendants’ previous motion to quash, and Defendants implicitly consented to its filing by failing to file a Reply. (See 5/12/26 Minute Order.) As such, the Court elects to allow the April 30, 2026 DOE Amendment to remain in the Court file. Plaintiff’s counsel is reminded that Plaintiff must obtain leave of Court before filing any further amendments to her pleadings. (See § 473.)

The FAC alleges two causes of action: one for Motor Vehicle Negligence, and another for General Negligence. The action arises from a motor vehicle accident that is alleged to have occurred on or about October 20, 2023. (FAC ¶ 11.) The parties do not dispute that the applicable statute of limitations for personal injury claims is two years. (See § 335.1.)

Defendants appear to concede that, based on the relation back doctrine, the relevant date for statute of limitations purposes is the filing date of the original complaint on October 21, 2025. Defendants argue that the complaint and all superseding amendments are time-barred, as the last day the action could have been filed was October 20, 2025, two years after the motor vehicle accident, and one day before the complaint was actually filed.

In Opposition, Plaintiff points out, among other things, that the FAC alleges decedent “Jack Malan had passed away prior to the commencement of this action.” (FAC, ¶ 7.) Plaintiff argues that this allegation is sufficient to establish that Jack Malan died, at the very latest, on October 20, 2025 (the day before the complaint was filed). Thus, Plaintiff argues, Jack Malan died at the very latest on the last day the action could have been filed under section 335.1. In these circumstances, Plaintiff argues that Probate Code section 551 extends the statute of

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

limitations one year because the limitations period had not yet expired at the time of decedent's death.

“Notwithstanding Section 366.2 of the Code of Civil Procedure, if the limitations period otherwise applicable to the action has not expired at the time of the decedent's death, an action under this chapter may be commenced within one year after the expiration of the limitations period otherwise applicable.” (Prob. Code, § 551.) Section 366.2 provides a similar, but slightly different, provision: “If a person against whom an action may be brought on a liability of the person, whether arising in contract, tort, or otherwise, and whether accrued or not accrued, dies before the expiration of the applicable limitations period, and the cause of action survives, an action may be commenced within one year after the date of death, and the limitations period that would have been applicable does not apply.” (§ 366.2.)²

The Court agrees that Probate Code section 551 applies and extends the statute of limitations. Here, the only allegation relating to Jack Malan's date of death is in Paragraph 7. Taken as true, Paragraph 7 establishes that Jack Malan passed away, at the latest, on October 20, 2025. It follows that section 335.1's two-year limitations period (under which Plaintiff had until October 20, 2025 to file an action) had not expired at the time of the decedent's death. Thus, under Probate Code 551, the action “may be commenced within one year after the expiration of the limitations period otherwise applicable,” or October 21, 2026. Based on the foregoing, the complaint, filed on October 21, 2025, is timely.

Defendants' attempt in Reply to refute Probate Code section 551's applicability is unavailing.

Based on the foregoing, the demurrer is OVERRULED. This ruling renders it unnecessary for the Court to consider Defendant's additional arguments in opposition to the demurrer. (See Opp. 7:12-10:7.)

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American Canyon I. LLC v. City of American Canyon et al

26CV001286

DEFENDANT CITY OF AMERICAN CANYON'S DEMURRER TO COMPLAINT OF
PLAINTIFF AMERICAN CANYON 1, LLC

TENTATIVE RULING: The demurrer is CONTINUED to September 11, 2026, at 1:30 p.m. in Dept. A. If that date and time do not work for the parties, they shall request oral argument pursuant to Local Rule 2.9 and appear at the hearing.

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² Plaintiff contends that section 366.2 does not apply because the present action is brought on an insured claim for which Probate Code 551 applies. (Opp., 6:3-5.) Defendants implicitly concede this by failing to address it in Reply.